

24VECV05404 24VECV05404

County: los-angeles

Division: Civil Law and Motion

Department: B

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Tentative Ruling

Tabibian v. Base Training and
Physical Therapy, Case no. 24VECV05404

Hearing date July 31, 2026

Defendant Base Training's Motion to
Abate - UNOPPOSED

Defendant
Base Training's Motions to Compel and Deem RFAs Admitted - UNOPPOSED

Plaintiffs
Parvaneh Tabibian, Dr. Parham Tabibian and Estate of Ebrahim Tabibian allege 85-year old decedent fell while under defendant's care, suffering ultimately fatal injuries. Defendant served pre-trial supplemental discovery on plaintiffs on 4/9/26. Defendant filed 12 discovery motions: (1) motions to compel pre-trial RFPs as to each plaintiff; (2) motions to compel pre-trial supplemental interrogatories as to each plaintiff; (3) motions to compel form interrogatories, set two, as to each plaintiff; and (4) motions to deem RFAs, set two, admitted. The motions are unopposed.

Defendant
separately moves to abate the action, arguing a necessary heir has not been joined. The motion is unopposed.

Defendant Base Training's Motion to Abate

Only

a single action for wrongful death may be brought on behalf of all heirs; there cannot be a series of suits by heirs against the tortfeasor for their individual damages. See *Cross v. Pacific Gas & Electric Company* (1964) 60 Cal.2d 690, 694. "...[W]here all the heirs are not joined, and timely objection is made on the ground by a defendant, the action should be abated..." *Valdez v. Smith* (1985) 166 Cal.App.3d 723, 730.

Defendant

served special interrogatories, set one, on decedent's estate. Decedent's estate identified two heirs: plaintiff Michael Tabibian and his sister nonparty Elham Tabibian. See Decl. Su, para. 5, exh. 2, no. 34. Elham Tabibian has never been a party to this action.

Code

Civ. Proc. §377.60 defines heirs to include a decedent's children. See Code Civ. Proc. §377.60(a). "An action by portion only of the heirs is not the action authorized by our statute. All the heirs should, therefore, join as plaintiffs in an action by heirs, and if the consent of any one who should be so joined cannot be obtained, he may be made a defendant..." *Valdez, supra*, at 730, citing *Salmon v. Rathiens* (1907) 152 Cal. 290, 294-295. Elham Tabibian is an heir and must be joined.

The

motion is unopposed. A necessary party remains to be joined. Abatement is mandated. Elham Tabibian must be named as a plaintiff or nominal defendant. GRANTED; the matter is in abeyance until Elham Tabibian is joined. All future dates are vacated.

Defendant Base Training's Motions to Compel and Deem
RFAs Admitted

As

the court granted defendant's motion to abate, discovery is stayed. The pending discovery motions are taken off-calendar and will be re-calendared when Elham Tabibian is joined. Defendant will not be required to re-file the motions.